

CS No. 313 of 2012
IN THE HIGH COURT AT CALCUTTA
TESTAMENTARY & INTESTATE JURISDICTION

Martin Burn Ltd.
Versus
Abhishek Saraf

Before:
The Hon'ble Justice I. P. MUKERJI
Date: 2nd August 2016

Appearance:
Mr. Samrat Sen, Sr. Advocate
Mr. Nirmalya Dasgupta, Advocate
Ms. Priyanka Dhar, Advocate
for the plaintiff

Ms. Sulagna Mukherjee, Advocate
Mr. Rohit Choudhury, Advocate
for the defendant

The Court: The following issues are framed by this Court:

1. Whether the parties had entered into an agreement as pleaded in paragraph 7(j) of the Written Statement? If so, whether such agreement is valid and enforceable?
2. Whether the Power of Attorney dated 30th March 2009 was revocable?
3. Whether the Power of Attorney dated 23rd March 2009, 27th March 2009 and 30th March 2009 have been validly cancelled and/or revoked?
4. Whether the Power of Attorneys executed in favour of the defendant on 23rd March 2009, 27th March 2009 and 30th March 2009 were coupled with interest?
5. Whether the Power of Attorneys executed in favour of the defendant on 23rd March 2009, 27th March 2009 and 30th March 2009 were irrevocable?
6. Whether the defendant had acted fraudulently and/or in breach of and/or in excess of the powers conferred under the Power of Attorneys dated 23rd March 2009, 27th March 2009 and 30th March 2009 executed by the plaintiff?

7. Whether the three Powers of Attorney dated 23rd March 2009, 27th March 2009 and 30th March 2009 are liable to be delivered up and cancelled?
8. Whether the defendant had taken any loan from the plaintiff?
9. Whether the plaintiff is entitled to repayment of any sum from the defendant?
10. Whether the plaintiff is entitled to the moneys claimed from the defendant in paragraph 9 of the plaint?
11. Whether the plaintiff is entitled to recovery of the loan granted by it to the defendant along with interest thereon as pleaded in paragraph 10 of the plaint?
12. Whether the defendant is obliged to hand over possession of the office on the 3rd floor at Esplanade House, 29, Hazari Mull Somani Marg, Mumbai to the plaintiff?
13. What other reliefs, if any, is the plaintiff entitled to?
14. Whether the suit is maintainable on the ground of territorial jurisdiction of this Hon'ble?

Let discovery be completed by the parties by 12th August 2016, inspection by 19th August 2016.

The Commissioner appointed for examining the first witness of the plaintiff may proceed after the discovery and inspection process has been completed. The procedure as agreed by learned counsel for the parties will be examination-in-chief through evidence on affidavit. This would also bind the learned Commissioner.

Certified photocopy of this order, if applied for, be supplied to the parties upon compliance with all requisite formalities.

(I. P. MUKERJI, J.)